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Case Number: 25NNCV01179 Hearing Date: August 14, 2026 Dept: D

TENTATIVE RULING

Calendar: 3

Date: August 14, 2026

Case No: 25NNCV01179 Trial Date: January 11, 2027

Case Name: Ventura v. Toyota Motor Sales, et al.

MOTION FOR ATTORNEYS' FEES

[CCP § 1794 subd. (d)]

Moving Party: Plaintiff, Jhonatan Ventura

Responding Party: Defendant, Toyota Motor Sales, U.S.A., Inc

RELIEF REQUESTED:

Order awarding attorneys' fees and costs in the amount of \$46,386.52, comprised of attorneys' fees of \$44,862.50 and costs of \$1,524.02.

CAUSES OF ACTION: from First Amended Complaint

1) Violation of the Song-Beverly Consumer Warranty Act § 1793.2(d)

2) Violation of the Song-Beverly Consumer Warranty Act § 1793.2(b)

3) Violation of the Song-Beverly Consumer Warranty Act – Breach of Express Warranty

4) Violation of the Song-Beverly Consumer Warranty Act – Breach of Implied Warranty

SUMMARY OF FACTS:

Plaintiff Jhonatan Venture ("Plaintiff") alleges that in February of 2024, Plaintiff leased a new Toyota Tundra 4wd from Toyota of Pasadena. The complaint alleges that defendant Toyota Motor Sales U.S.A., Inc. ("Defendant") issued to Plaintiff express warranties, in which Defendant promised against defects in materials and workmanship and undertook to preserve or maintain the utility or performance of the vehicle or provide compensation if there was a failure in such utility or performance.

Plaintiff alleges that subsequent to Plaintiff's purchase, the vehicle exhibited numerous defects and nonconformities covered by the warranties which substantially impair the use, value, or safety of the vehicle. Plaintiff alleges that Defendant or its authorized repair facilities have failed to begin repairs in a reasonable time and complete repairs on the vehicle within thirty days so as to conform the vehicle to the applicable warranties, and defendant has been unable to conform the vehicle to warranty after multiple failed repair attempts and failed inspections.

Plaintiff alleges that Defendant has failed to repair or replace the vehicle or provide restitution.

ANALYSIS:

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP, § 1032 subd. (b).) Attorney fees are allowed as costs when authorized by contract, statute or law. (CCP, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. Civil Code section 1794 states:

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

(Civil Code, § 1794, subd. (d).)

Entitlement to Attorneys' Fees

The parties here do not dispute that Plaintiff is the prevailing party pursuant to a January 22, 2026, Settlement Agreement which provides for an award of attorneys' fees, costs, and expenses to be determined by noticed motion. (David Decl., ¶ 4, Ex. 1.) Thus, Plaintiff is the prevailing party in this action and is entitled to a reasonable amount of attorneys' fees.

Reasonableness of Fees

Plaintiff seeks an award of attorneys' fees and expenses in the total amount of \$46,386.52 consisting of: (1) \$44,862.50 in attorneys' fees; and (2) \$1,524.02 in costs. The motion seeks approximately 101.5 hours of time spent by attorneys and paralegals from the Law Offices of Jon Jacobs at billing rates ranging from \$250 to \$795 per hour.

Hourly Rate

In determining a reasonable attorneys' fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group, supra, 22 Cal.4th at p. 1095 ["The experienced trial judge is the best judge of the value of professional services rendered in his court."].)

In connection with attorneys' fee awards under the Song-Beverly Act, "The statute 'requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." ' ' ' (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470, quoting Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

In the opposition, Defendant argues that the billing rates charged are excessive. (Opp., pp. 2:18-3:20.)

The moving papers submit evidence justifying the billing rates claimed, describing the experience and expertise of the attorney who billed on this matter (David Decl., ¶¶ 8-13.) The rate requested conforms with what this Court would expect to be charged in matters of this nature. The Court has reviewed all evidence submitted and is familiar with the customary billing rates in this county and in cases of this nature. Under the circumstances, the Court finds the billing rates reasonable, and the Court will not reduce the billing rates charged. The Court will however, take into account the high hourly rates charged and counsel's attested level of expertise when assessing whether the total number of hours expended was reasonable.

Number of Hours

Plaintiff's fee recovery is based on 101.5 hours of time spent litigating this case through the instant motion for which Plaintiff has submitted billing records. (David Decl., Ex. 6.) Defendant objects to Plaintiff's requested hours on the grounds that several of the billing entries are unreasonable. (Opp., pp. 5:23-8:28.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.)

First, Defendant objects to several billing entries as vague and block billed, (Opp., pp. 5:23-6:18.) Upon review, the Court finds that the 1.0 hour billed on 2/20/2025 for "intake review" is impermissibly vague, making it difficult to assess the reasonableness of the hours claimed. The Court therefore reduces the requested time by 0.5 hours.

Accordingly, the Court will reduce the fees by \$397.50.

Second, Defendant objects to 3.6 hours billed on 2/21/2025 to draft a templated Complaint. Upon review, the Court agrees that this time appears overstated. The Complaint is written at such a high level of generality that it could apply word-for-word to dozens of other Song-Beverly plaintiffs. The Court therefore reduces the requested time by 1.8 hours.

Accordingly, the Court will reduce the fees by \$1,431.

Third, Defendant objects to 2.4 hours billed on 5/16/2025 to review the demurrer and draft an opposition. The Court does not find that the time spent on this task was unreasonable.

Accordingly, the Court declines to reduce the fees on this ground.

Fourth, Defendant objects to 4.2 hours billed on 5/19/2025, 1.0 hour billed on 11/24/2025, and 2.7 hours billed on 1/09/2026 to draft discovery requests and responses which Defendant argues are templated and nearly identical to the discovery served and received in other cases. The Court agrees that the hours claimed are excessive. Modifying templated discovery should take minimal time, especially for counsel with the high hourly rate claimed here. The Court therefore reduces the requested time by 3.0 hours.

Accordingly, the Court will reduce the fees by \$2,385.

Fifth, Defendant objects to 0.2 hours billed on 6/30/2025 for internal office communications. The time is minimal and does not warrant reduction.

Accordingly, the Court declines to reduce the fees on this ground.

Sixth, Defendant objects to 2.8 hours billed on 1/21/2026 to draft Plaintiff's mediation brief. The Court agrees that this time appears overstated. The facts and posture of this case are not complex or unique, and the mediation brief should have taken minimal time to prepare, especially at counsel's high hourly rate. The Court therefore reduces the time by 1.0 hour.

Accordingly, the Court will reduce the fees by \$795.00.

Seventh, Defendant objects to 6.5 hours to draft the instant fee motion and accompanying documents. While the billing and supporting evidence may have taken some time to gather, this appears to be substantially a template motion regularly used by Plaintiff's counsel. The Court therefore reduces the fee by 3.0 hours.

Accordingly, the Court will reduce the fees by \$2,385.

Lastly, Defendant objects to 5 hours anticipated to review the opposition to the fee motion, prepare a reply and appear at the hearing. This Court does not find that the anticipated time for these tasks is unreasonable.

Accordingly, the Court declines to reduce the fees on this ground.

Having analyzed the motion and pleadings filed, and having reviewed the billing statements provided, the Court determines that a reasonable lodestar in this case is \$37,469.00 representing 92.2 hours. In sum, the Court reduced the requested

lodestar of \$44,862.50 by \$7,33.50 for a total of \$37,469.00 and the Court reduced the requested hours of 101.5 by 9.3 for a total award of 92.2 hours.

Multiplier

Defendant requests that the Court apply a negative 33% multiplier to the requested fees. (Opp., pp. 4:13-5:20.) Having reviewed the billing records entry by entry and reduced the requested hours where appropriate, the Court finds that a blanket 33% negative multiplier is not warranted.

Entitlement and Reasonableness of Costs

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute "may be allowed or denied in the court's discretion." (CCP, § 1033.5 subd. (c)(4).)

Song-Beverly allows a successful plaintiff to recover both "costs" and "expenses." (Civ. Code, § 1794, subd. (d).) Courts have held that "it is clear the Legislature intended the word

'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (Jensen v.

BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137.) The court in Jensen

held that "[t]he legislative history indicates the Legislature exercised its power to permit the

recovery of expert witness fees by prevailing buyers under the Act ...," noting that the

legislature included "expenses" in the lemon law act because "[t]he addition of awards of "costs

and expenses" by the court to the consumer to cover such out-of-pocket expenses as filing fees,

expert witness fees, marshal's fees, etc., should open the litigation process to everyone.'

[Citation.]" (Ibid.)

Plaintiff requests a total of \$1,524.02 in litigation costs and expenses. (David Decl., Ex. 7.) The items claimed are proper and necessary on their face, shifting the burden to Defendant to show that they were not reasonable or necessary. Defendant in opposition does not contest the costs. Thus, the costs and expenses are awarded in full as requested in the sum of \$1,524.02.

RULING:

Plaintiffs' Motion for Attorney Fees, Costs, and Expenses is GRANTED, IN PART.

The Court finds that reasonable attorney's fees, costs and expenses are:

Lodestar Adjusted = \$37,469.00

Expenses and Costs = \$1,524.02

Total Award= \$38,993.02

The total fee award of \$38,993.02 [\$46,386.52 sought] is to be awarded to Plaintiff Jhonatan Ventura against Defendant Toyota Motor Sales, U.S.A., Inc and added to the judgment.

Counsel for moving party is ordered to prepare a proposed form of judgment and submit it on eCourt by noon today in accordance with this order.

Defendant's Evidentiary Objections to the Declaration of Chad A. David

Nos. 1-7: OVERRULED

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.